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DRUGS AND COSMETICS ACT - UNIT IIND

- Details study of Schedule G, H, M, N, P, T, U, V, X, Y, Part XII B, Sch F & DMR (OA)
- Sale of drugs
- Labelling & packaging of Drugs
- Administration of the Act and Rules

^{PART-1} DETAILS STUDY OF SCHEDULES

1) Schedule G →

This schedule contains those drugs or substances which can only be used under medical supervision.

- All drugs of schedule contain a level on its label :-

SCHEDULE G PRESCRIPTION DRUG CAUTION :- It is dangerous to take this preparation except under medical supervision.

- It is compulsory to make proper bill of sale of schedule G drugs.

- Also compulsory to regulate all records of purchase and sale of schedule G drugs for 2 years.

Eg: Hormonal preparations, L-Asparaginase, Bleomycin, Busulfan, chlorambucil, Aminopterin, Hydatin Chlorothiazide, Hydroxyurea, Insulin, mifamoin etc.

2) Schedule H →

This schedule contains prescription drugs (those drugs which should be sold by retail only when a prescription is formed by a RMP).

- The drug label should have the texts :-

"Rx" sign and "NRx" - for Narcotic drugs.

SCHEDULE H PRESCRIPTION DRUG - CAUTION
Not to be sold by retail without the prescription of a Registered Medical Practitioner (RMP)
All in Red display.

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eg Verapamil, Difenhydramine, Paracetamol,

etc...

• Schedule H₁ -

This schedule which introduced in 2013 as amendment to the DPC act... to control the sale of antibiotics.

- It contain some regulation which check unauthorized sale.
- Sign - "Rx"
- Warning -

SCHEDULE H₁ DRUGS - WARNING:

- It is dangerous to take this preparation except in accordance with medical advice.
- Not to be sold by retail without the prescription of RMP.

in Red display.

eg Alprazolam, Diazepam, Levofloxacin,

Zolpidem etc...

3) Schedule M -

This schedule deals with Good manufacturing

Practices

• It includes all suitable premises:-

- location and building
- building
- Water Supply
- water disposal
- Health, clothing & sanitary requirement of the staff
- Medical service
- Working hours etc...

• It also include requirement of plants and equipments.

eg mixing tanks, storage tanks, dryers,

disintegrators, tablets punching machines, oven, fracture etc...

- all are must be in good condition and also use aseptic condition for preparations.

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4) Schedule N →

This schedule contains a 'list of minimum equipment for the efficient running of a pharmacy'.

• It contains suitable

- premises
- furniture
- apparatus
- Books - (I.P., D+C.Bs etc-)
- General provisions etc--

5) Schedule P →

This schedule deals with the "life period of drug" and also the storage conditions of drugs.

• It contains comprise of antibiotics, vitamins, insulin preparation, sera toxins, other toxins, anti-toxins etc--

[eg.]

- Adramycin - life period 30 months - stored in cool places
- Ampicillin - 36 months - "

• Schedule P₁ →

Deals with the pack size of drugs.

• It includes names of drugs with the dosage forms and the pack size.

[eg.]

Drugs	Dosage form	Pack size
Aspirin	Tablets	14 tabs
Glycerol Trinitrate	Capsules	25 cap

6) Schedule T →

This schedule deals with Good manufacturing

practices for Ayurvedic, Siddha and Unani medicines.

• It also includes: -

- factory premises
- location & surroundings
- Building
- water supply
- Disposal of waste
- containers cleaning
- stores
- Raw materials

(ASU)

- Packaging materials
- finished goods stores
- working space
- Health, clothing for workers
- Medical services
- Quality controls etc--

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7) Schedule U →

This deals with the manufacturing records.

• It includes :-

- parenteral preparations
- other than parenteral preparations
- records of raw materials
- containers, packing materials etc--
- points to remember for records:-

serial number, name of product, batch size, number, all tests, expiry date, remarks etc--

8) Schedule V →

This deals with standards for patent or proprietary medicines.

• It includes :-

- Tablets ✓
- capsules ✓
- liquid oral dosage forms ✓
- injections ✓
- ointments etc ✓

9) Schedule X →

This schedule contains those drugs whose import, sale, labelling, and packaging are governed by special provision.

• It include list of Narcotic drugs and psychotropic substances.

[eg]- Amobarbital, Barbitol, Methyphenobarbital, pentobarbital, secobarbital etc--

10) Schedule Y →

This schedule deals with the requirements and guidelines on clinical trials for import and manufacture of new drugs.

• It includes -

- Application for permissions.

= Clinical trials (I-IVth phase)

- Human pharmacology (Phase I)
- Therapeutic exploratory trials (Phase II)
- Therapeutic confirmatory trials (Phase III)
- Post marketing trials (Phase IV)

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11) Schedule f - Part XII B →

This schedule deals with the requirements for the functioning and operation of a blood bank and preparation of blood components.

- It includes :-
 - General Requirements
 - location & surrounding
 - Buildings
 - Health, clothing & sanitation of staff
 - Accommodation for a blood bank
 - Personnel
 - Maintenance
 - Equipment
 - for blood collection room
 - for hemoglobin determination
 - for temperature and pH determination
 - for blood containers
 - freezing equipment
 - Records
 - Labels etc.---

12) DMR (ORA) →

DMR → The drug and magic Remedies Act

1954

(Objectionable Advertisements)

- This act is passed for regulating the advertisement of some drugs and the advertisement of remedies having quality of magic.

- This act regulate and maintain the standards when manufacturers advertise any drugs.

- Acc. to this act,

- If any advertisement offending the decency or morality can be banned.
(offence) (decent) (अश्लील)

- If any advertisement claiming any magical power for drugs can be banned.

[eg]. Cure for incurable disease etc.

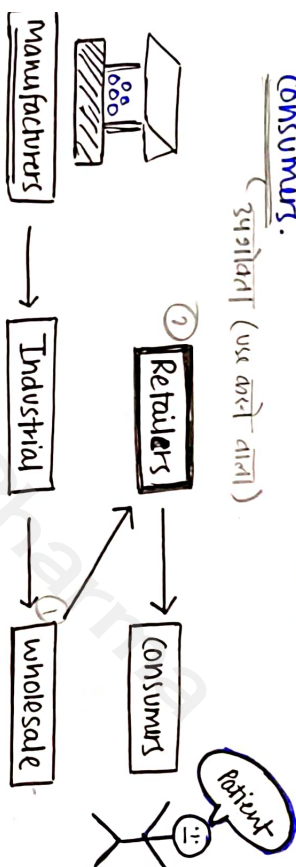
magic remedies include "mantras" & "kaivalas" etc.

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SALE OF DRUGS

Sale is the process of passage of drugs (substance) from the manufacturers to the consumers.

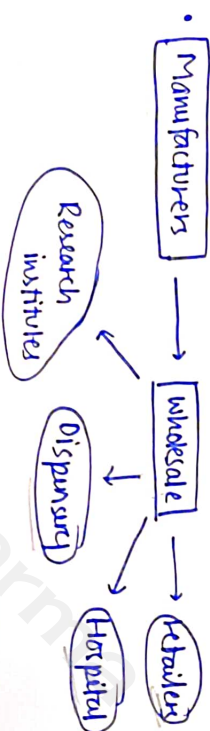


Mainly there are two types of sale.

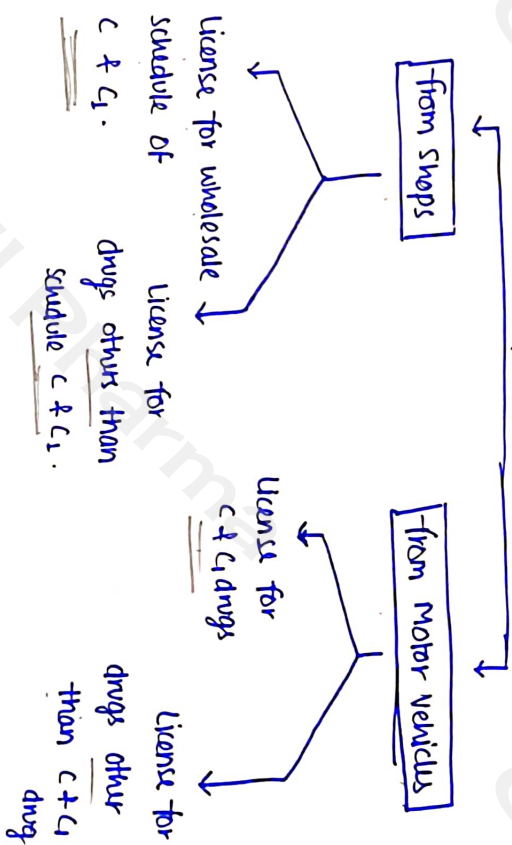
1) Wholesale →

It is a sale by the way of wholesale dealing.

It sale to a person for the purpose of selling again.



Wholesale



from shops

1) Wholesale for schedule C & G1 drugs.

"The person must have license.

The licensee must have adequate premises, infrastructural facilities and storage conditions.

The licensee can sale drugs only to licensed retailers... (not required for hospital, educational & research institutes etc...)

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- If the licensee desired to sell any other drugs (not described in license), then he/she should seek permission from the license authority.
- Licensee should maintain records related to all purchase & sale of drugs :-
 - Date of purchase & sales
 - Name & address of the person from whom purchased & to whom sold.
 - Name & quantities of drugs & their batch no.
 - Name of manufacturers of drugs.
- All the records should be preserved from the date of sale to a period of atleast three years.
- General condition ↑
- Licensee should be displayed in the premises so that it is open to the public.

- ii) Wholesale of drugs other than those specified in schedule C & C₁.
 - Drugs not to be sold to any person who do not hold the license for the retail sale.
 - The license should be displayed in the premises so that it is open to the public.
 - All other provision (conditions) are same as discussed above.
 - from motor vehicle
 - The licensee must have granted license for drug distribution via motor vehicles.
 - Separate license is necessary for schedule C & C₁ drugs & for other than those specified in schedule C & C₁.
 - All other conditions are same as discussed above.
 - The license should be displayed wholesale from shop in the main (front) place in the vehicle.

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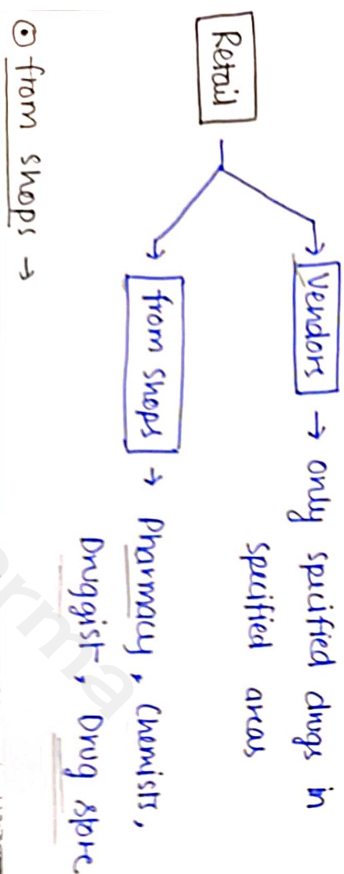
2) Retail sale of drugs →

It is a sale by other than the way of wholesale dealing.

• In this a person can sale drugs direct to the consumers.

eg. Manufacturers → wholesale

- Retailers
 - Chemist / Druggist
 - Pharmacies
 - Drug stores
 - Hospital
 - Dispensary etc.
- ↓
- (consumers (patients))



○ Retail sale of drug can be done from the following shops -

i) chemist / Druggist → A license premises where drug can sale (functions) under the supervision of 'Registered pharmacist' but they do not compound drugs.

ii) Pharmacies → A license premises where drug can sale under the supervision of Registered pharmacist and they have also engaged in compounding of drugs.

iii) Drug stores → They do not have a registered pharmacist and sell drugs specified as household remedies.

○ They all required separate licenses for the sale of:—
- Schedule C & C₁ drug

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- Schedule X drugs and
- Drugs other than those specified in Schedule C, C₁ & X.

③ Conditions required for license.

- The licensee must have facilities as per Schedule N.
- purchased only from licensed wholesalers.
- Separated licensed as mentioned above.
- A person should take additional permission from licensing authority if he/she want to sell those drugs which are not mentioned in their license.
- All records should be maintained and keep for atleast 2 years.
- The license should allow the inspection of the premises.
- Precaution must be taken during storage of Schedule C & C₁ drugs.

④ Retail sale from Vendors → बेचने वाला (विक्रेता)

- Drugs are sold by vendors who do not have a fixed place of business, they should sell drugs in any particular place.

- They can granted a license by the license authority to conduct business in a particular area.

- The license to sell drugs are issued only for drugs other than those specified in Schedule C & C₁.

3) Restricted license →

- The license for sale & distribution of drugs which can be sold without supervision of qualified persons.

- They allow to sale of drugs -
- Those specified in Schedule C & C₁
- Other than specified in Schedule C & C₁
- But Schedule X drugs not involved.

Narcotic & Psychotropic drugs.

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- The license authority should consider the occupation, trade or business of the applicant and also the number of license granted in a area in the last three years, before granting the restricted licenses.

① Conditioning :-

- well equipped premises + adequate facilities (not required for vendors)
 - the licensee should be displayed the license in the premises, while vendors keep the license with them.
 - The drug should be bought only from a licensed dealer or manufacturers.
 - Drug should be sold in their original containers.
- ② Classes of drugs prohibited to Sale
- Misbranded, spurious, adulterated and drugs not of standard quality.

- Sch. I drugs -
- Expiry drugs -
- Patent and proprietary drugs with undisclosed formula.
- Drugs which has label "Drugs not to be sold".

③ License + their form No.

License issued	Drugs other than schedule C, L1 + X drugs	Schedule C + L1 drugs	Schedule X drugs.
Retail	20	21	20-f
Wholesale	20-B	21-B	20-G
Wholesale from motor	20-BB	21-BB	-
Restricted	20-A	21-A	-

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Offences + Penalties → Sale

Offences	Penalties	Offences	Penalties
1) Sale, stocking, exhibition or offer for sale of drugs which may cause <u>death</u> or <u>serious hurt</u> as per <u>Section 320 of IPC</u> .	• Imprisonment from <u>5 years to life time</u> • fine not less than <u>Rs. 10,000</u>.	5) failure to keep records or <u>disclos</u> required information	Imprisonment for 1 year + fine upto Rs. 1000.
2) Sale, stocking, exhibition or offer for sale of <u>adulterated drugs</u>	i) Imprisonment - 1-3 years fine upto 5000 ii) Imprisonment - 2-6 years fine upto 10000	6) false warranty to purchaser	i) Imprisonment <u>1 year</u> fine upto Rs. 5000 ii) Imprisonment upto 2 year + fine
3) Sale, stocking, exhibition or offer for sale of <u>spurious drugs</u>	i) Imprisonment 3-5 year fine not less than 5000. ii) Imprisonment 6-10⁺ year fine not less than 10,000.	7) Use of reports of government analysts or central drug laboratory for advertising.	• fine upto Rs. 500 + imprisonment for upto 10 year on both subsequent convictions.
4) Sale, stocking, exhibition or offer of sale in <u>conventio</u> ⁿ of any other <u>provisio</u> ⁿ .	i) Imprisonment 1-2 year ii) Imprisonment 2-4 year + fine upto 5000 Rs.		

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8.3 Labelling & Packing of drugs

Containers of all drugs and medicines are to be labelled according to Drug & Cosmetic Act & rules 1955.

- It should be printed on inner and outermost container of any drugs.
- It helps in identification of any drugs.
- The legal requirement for labelling of drugs - General labelling requirements
 - Name of drugs (official name, trade name, manufacturer's name & address, license no. & batch no. etc--)
 - Potency, standard, grade, dose etc-- all are expressed in ml, grams, unit etc--
 - Net content by volume/weight/number.
 - manufacturing & expiry dates.
 - Precaution for handling, storage, sale or usage.

- Special instruction for certain drugs such as veterinary use, physician samples etc--
- Special labelling such as "drug for export", "dispensed drug" & "Not to be sold" etc--
- Some instruction may vary to drugs on acc. to their schedules.

[eg.]

• Schedule G →

All are same, but these drugs contains a warning [caution] on their label

Schedule G Prescription Drugs
Caution: It is dangerous to take this preparation except under medical supervision.

• Schedule H →

They contain special label in which they contain Rx sign & warning:-
 "Not to be sold by Retail without prescription".

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- Schedule X drugs →
 - "To be sold on prescription of RMP only"
 - Symbol XRx in red on left hand top corner.
- Veterinary drugs →
 - Not for human use.
 - Animals use only.
- Patent and proprietary medicine →
 - Quantity of the active ingredients
 - Manufacturer's name & address.
- Pharmaceutical →
 - Name or synonym as specified in the pharmacopoeia followed by letter - "I.P.", "B.P.", U.S.P etc--
 - Preparation for external applications →
 - "for external use only"

etc... -

- Specimen labels for drugs and cosmetics
 - "All the details mentioned on the container's label" and "it should be properly visible on the innermost container having the drug is present" and "also on every following covering in which the container is packed."

- Some examples -

- for 10 ml of insulin 80 units/c.c.
(Schedule C + Schedule G drugs)

loc.c
Insulin
80 unit/c.c
Caution: It is dangerous to take this preparation except under medical supervision
Mfg. Licence No. 3415 Batch No. 3415
Date of Manufacture - 1-1-98
Mandiy & Sen Ltd. 20, Bow bazaar, Calcutta.

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ii) for hair lotion containing 2% w/v mercuric chloride

RINSO HAIR LOTION
contains 2% w/v mercuric chloride
<u>for external use only</u>
Delvi cooperative chemists 32, The fountain, Delhi

iii) for 100 tablets of Phenobarbitone (sh. x drugs)

100 X 50mg Tablets of Phenobarbitone
schedule X drug
<u>Warning:</u> To be sold by retailers on the prescription of a RMP only
JOHN & JOHN LTD. Chemists 15, Park street, Calcutta.

③ List of permitted colours

These are those colors which can be added to the medicines.

- The common names and the percentage of colour added should be mentioned on the label of container.

- The medicines to which these colours are added shall not be deemed to be misbranded only due to the fact of adding of colours within:

- Natural colours → Carotene, curcumin, chlorophyll, Red oxide of iron, Annatto and titanium dioxide.
- Artificial colours → Caramel (orange-brown)
- Coal tar colours → p-phenylenediamine is a particular coal tar dye used in many hair dyes.

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Table 2.4: Colours and their Chemical Names

Common Names of Colours	Colour Index Number	Chemical Names
Green		
Quinizarine SS	61565	1, 4-Bis (p-tolyamino) anthraquinone.
Alizarin Cyanine Green F	61570	Disodium salt of 1,4 -bis (o-sulfo-p-tolouino) anthraquinone
Fast Green FCF	42053	Disodium salt of 4 -{[4-(N-ethyl-p Sulfobenzylamino) -phenyl]-(4-hydroxy2- sulfoniumphenyl)-methylene} [1 - (N-ethyl-N-p-sulfobenzyl)Δ 2, 5-cyclohexadienimine].
Green S	44090	
Yellow		
Tartrazine	19140	Trisodium salt of 3 -carboxy-5- hydroxy-lp-sulfophenyl-4-p- Sulfophenyl azopyrazole.
Sunset Yellow FCF	15985	Disodium salt of 1 -p-sulfophenyl azo -2- naphthol-6-sulfonic acid.
Quinoline Yellow WS	47005	Disodium salt of disulfonic acid of 2(2 - quinoly)-1, 3 -indandione.
Red		
Amaranth	16185	Trisodium salt of 1(4 -sulfo-l-naphthylazo) 2-naphtho 1 -3, 6-disulfonic acid.
Erythrosine	45430	Disodium salt of 9 -o-carboxyphenyl 6-hydroxy 2,4 -5,7-tetrido-3-isoxanthone.

• Colours and their chemical Names →

Common Name of colour

Colour index no.

Chemical Name

Quinizarine SS

61565

1,4 - Bis (p-tolyamino) anthraquinone

Green

Eosin YS or Eosin G	45380	Disodium salt of 2,4,5,7 -tetrabromo-9-p-carboxyphenyl-6-hydroxy 3-isoxanthone.
Toney Red or Sudan III	26100	1-p-phenylazophenylazo-2-naphtho.
Ponceau 4 R	16255	Trisodium salt of 1 -(4-sulpho-1-1- Naphthylazo)- 2 naphthol-6 : 8-disulphonic acid.
Carmoisine	147720	Disodium salt of 2 -(4-sulpho-1-naphthylazo)-1 naphthol -4 sulphonic acid.
Fast Red E	16005	Disodium 2 -hydroxy-1-(4-sulpho-1-naphthylazo) naphthalene -6-sulfonate acid.
Blue		
Indigo Carmine	73015	Disodium salt of indigotin
Brilliant Blue FCF	42090	Disodium salt of 4 -{[4-(N-ethyl-psulfobenzylamino)-phenyl]-(2- sulfonium phenyl)-methylene)-1-(N- ethyl-N-psulfobenzyl)- Δ 2, 5-cyclohexadienimine.
Violet		
Alizuroil Purple	60725	Disodium salt of 1 phenylazo -2-naphtho 1-6,8-disulphonic acid.
Brown:		
Resorcin Brown	20170	Monosodium salt of 4 -p-sulfophenylazo-2(2,4-xylylazo)-3-resorcinol.
Black		
Naphthol Blue	20470	Disodium salt of 8 -amino-7,5-nitrophenylazo-2-naphthol-3,6-disulfonic acid

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- Packaging - The only aim of pharmaceutical packaging is to confirm the safety of pharmaceutical preparation so they do not get contaminated.
- packaging also prevents microbial growth, thus the product remains stable during the intended shelf-life.
 - Packaging is an important tool in pharmaceutical industries for product delivery.
 - Offences and Penalties -
The offences which can be committed with packaging and labelling of medicinal products :-
 - i) selling a product not in a container.
 - ii) Issuing a false or misleading label with the medicinal product
 - iii) packing a product in a container that does not fulfill the requirements of the regulations.
 - iv) selling, supplying or processing for sale a product that is not of the colour or not marked
- requirement of the regulations, and v) selling products from an automatic machine not marked as per the requirements of the regulations.

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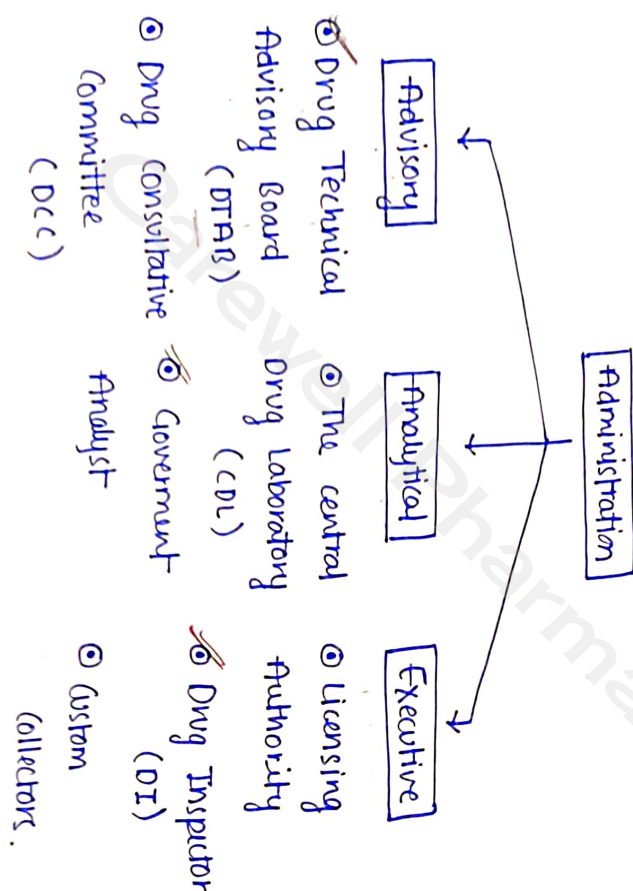
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PART-1

ADMINISTRATION OF THE ACT & RULES

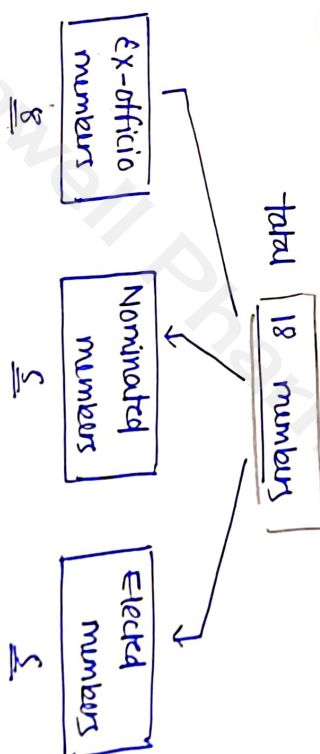
These are those agencies which regulate & maintain this drug & cosmetic act, 1940 & rules 1945.



① Drug Technical Advisory Board (DTAB).

Central government appoints DTAB to advise the central and state gov on technical matters arising out of the administration of this act.

• constitution of DTAB →



1) Ex-officio members →

- i) Director general of health services (chairman)
- ii) Drugs controller of India
- iii) President, Pharmacy council of India (PCI)
- iv) President, Medical council of India
- v) Director, central drug laboratories, Kolkata

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- vi) Director, central drug research institute, lucknow.
- vii) Director, central Research institute, kasauli
- viii) Director, Indian veterinary research institute, Izzatnagar.
- 2) Nominated officers → central gov.
- i) One person from pharmaceutical industry, nominated by central gov.
- ii) Two government analyst, nominated by central gov.
- iii) Two person from among the person who are in charge of the drug control agencies in the state, nominated by central gov.
- 3) Elected members →
- i) A teacher in pharmacy, pharmaceutical chemistry, or pharmacognosy on the staff of a university, or affiliated college elected by the executive committee of pharmacy council of India.
- ii) A teacher in medicine or therapeutic on the staff of a university or affiliated college elected by the executive committee of the medical council of India.
- iii) One person elected by the council of the Indian pharmaceutical Association.
- iv) One person elected by the council of the Indian medical Association
- v) One pharmacologist elected by the governing body of the Indian council of medical research.
- The nominated + elected members hold office for 3 years + eligible for re-nominated + re-election.
 - functions →
 - Advices the central + state government
 - It makes modification and amendments in the act by consulting the board.
 - It carries out the other function assigned by the act.

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② Drug consultative committee → (DCC)

The DCC shall consist of

- Two representatives of the central gov. ②
- One representative from the each state gov.

This body has the power to request its own procedure.

• functions →

- It advises the central government, the state government and the DTA on any matter relating to secure uniformity throughout India in the administration of this act.

- When required it regulate its own procedure.

③ The central drug laboratory (CDL)

The central drug laboratory is established in Calcutta under the control of a Director.

• functions →

- To analyse the sample of drugs or cosmetic sent to it by
- custom collector or courts
- If carried out the analytical G.C of the imported samples.

- To carry out such other duties as may be assigned to it by central gov. or state gov. with the permission of central gov after consultation with DTA.
- If some drugs test are not carried out in CDL at Kolkata then it send to other lab:-

Products	Labs
• Sera, Vaccines, toxins, antigen, antitoxins etc- • Sera, Vaccines, toxins, antigen, antitoxins for veterinary use • Oral Polio Vaccines	- Central Research Institute, <u>Kasauli</u>. - Indian Veterinary Research Institute, <u>Izaznagar</u> - Vaccine testing laboratory of <u>CRI Kasauli</u>.

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• National Institute of Vaccine pure.	• Condoms
Indian pharmacopoeial laboratory, Ghaziabad	

④

Government Analyst →

Government Drug Analyst

- Government analyst analyses the drug and cosmetic samples in labs which is sent by the drug Inspector.

- Government Analyst appoints -

"In relation to pharmaceutical, Siddha or Unani drugs a person appointed by central or state gov. under section 33-f."

And

"In relation to any other drugs or cosmetics a person appointed by central or state gov. under section 20."

• function → (Duties)

- They analyse and test the drug and cosmetic sample sent by the drug Inspector or other person. Then, they prepare reports of test or analysis acc to rules.

- They involve in any research work and provides the government with timely results of analytical and research work with a view to publication at the pleasure of the Govt.

• Qualification →

- A graduate in medicine or science, pharmacy or pharmaceutical chemistry with minimum experience of 5 years in the testing of drug in a laboratory under the control of

a) Govt. analyst

b) head of an institution or approved testing laboratory

- A postgraduate in [above] subject & minimum 3 year experience.

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- Association diploma of the Institution of chemist, India with "Analysis of drugs & pharmaceuticals" as one of the subject with not less than 3 years of experience in the testing of drugs in a laboratory under the control of
 - Gov. analyst & - Head of an institution or approved testing laboratory.

⑤ Licensing Authority →

The central government appoints this licensing authority to issue license for manufacturing, sale & import of drugs.

- These authority are designated differently in different states, mainly they are known as -
 - Drug Controller
 - Director, Drug control Administration
 - officer-in-charge, Drug control.
- function →
- License authority have choice to either issue

- or refuse licenses to the applicants, depending on that they satisfy the prescribed rule or not.
- Also have power to cancel or suspend any licence if found something wrong.

⑥ Controlling Authorities →

• All Inspector at central and state level are under their control.

- It has power to control Drug Inspector.

• Qualification →

- He/she is a graduate in pharmacy / pharmaceutical chemistry / medicine with specialisation in clinical pharmacology / microbiology from a recognised university.

- He/she has experience in drug manufacturing and testing of enforcement of the provision of the act for five years.

⑦ Custom collectors →

The customs collectors or person

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on his behalf may obtain ⁽⁷³⁽¹⁾⁽¹⁾⁾ imported package which he/she suspects to contain drug/cosmetic import of which is prohibited, report attention to Drug controller and if required forward sample to CDL.

⑧ Drug Inspectors (DI)

The inspector may be appointed either to inspect the premises licence for the sale of drugs or to inspect the establishments licensed for the manufacture of drugs and cosmetics.

- In relation to a figuredic, Siddha or Unani drug, an inspector appointed by the central government or a state government under section 33A of IPC and
- In relation to any other drug or cosmetic, an inspector appointed by the central or a

state government under section 21 of IPC.

• Qualification -

- A graduate in pharmacy / pharmaceutical sciences or medicine with specialization in clinical pharmacology or microbiology of a recognized university.

• Should have -

- Not less than 12 month an experience in the manufacture of at least one of the substance specified in schedule C; or
- Not less than 18 month experience in testing of atleast one of the substance specified in schedule C in an approved laboratory.
- Not less than 3 years experience in the inspection of firms manufacturing any of the substance specified in schedule C during the course of their service as the drug inspector qualification for drug inspector.

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- Power of DI - He/she -
 - may inspect any premises where drug or cosmetics are being manufactured/sold.
 - may take sample of drug/cosmetics being manufactured/sold.
 - may enter and search any premises in which an offence is believed to be committed.
 - may examine and size any records, registers and documents.
 - may search any person, who he has reason to believe has secreted about any drug or cosmetic in respect of which an offence is being committed.
 - may stop and search any vehicle, vessels or other conveyance used for carrying any drug or cosmetic in respect of which an offence is committed.
 - may exercise such other power as may be necessary.
- Duties of Drug Inspector -
 - 1) In relation to sale of drugs and cosmetics:
 - To inspect at least once a year all establishments licensed for sale of drugs in the area assigned to him and to satisfy himself whether the condition of the licence are observed or not.
 - If necessary then to obtain and send samples of imported drugs and cosmetics for test or analysis, which are being sold or stocked in contravention of the provision of this Act.
 - To investigate any complaint made in writing to him.
 - To maintain the records relating to all inspection and action taken by him and to submit copies of such records to the controlling authority.
 - To make enquiries and inspection regarding the sale of drugs in contravention of the Act.

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- To detail the imported packages, if he suspects to contain drugs the import of which is prohibited duties of drug inspector.

ii) In relation to manufacture of drug & cosmetics :-

- To inspect at least once a year all premises licensed for manufacture of drugs in the area assigned to him and to satisfy himself whether the conditions of the license and provision of the Act + Rules are observed or not.
- To take samples of drugs manufactured on premises and turn for test or analysis
- To check all records and registers required to be maintained under rules.
- To institute prosecutions for breach of the duties of drug inspectors.

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